

20STCV15927 20STCV15927

County: los-angeles

Division: Civil Law and Motion

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TENTATIVE RULING

September 3, 2026

20STCV15927 (JK7 LLC, et. al. v.

ABS Construction Group, Inc., et. al.)

RELEVANT BACKGROUND

On April 24, 2020, plaintiffs JK7, LLC and Diana Farajollahzadeh LLC (Plaintiffs) filed their initial complaint against numerous defendants. On June 25, 2024, Plaintiffs filed their first amended complaint (FAC) against defendants ABS Construction Group, Inc.; Felix Hurtado; Primo Construction, Inc.; Modern One Plastering, Inc.; Borik Jeovany Rosales Miranda; Pyramid General Contractor Mission City Glass, Inc.; Robert Madrazo; Anahita Construction; Alireza Haghighat; Kypseli Construction And Pools, Inc.; Nader Kashani; And Does 1-100.

INSTANT MOTION

On July 13, 2026, Defendants Alireza Haghighat and Anahita Construction, Inc. (collectively Defendants) filed the instant motion to set aside default and default judgment. Plaintiffs filed an opposition, and Defendants filed a reply.

REQUEST FOR JUDICIAL NOTICE

The request for judicial notice of various

filings in the instant action are granted.

DISCUSSION

“The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473, subd. (b).)

Code of Civil Procedure section

580(a) provides that, where there is no answer, “[t]he relief granted to the plaintiff ... cannot exceed that demanded in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115.” (Code Civ. Proc., § 580, subd. (a).)

Defendants’ motion to set aside

defaults and default judgment is GRANTED on the basis that the amount exceeds the amount sought in the complaint and the judgment is therefore void. (Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161,1172-1174 [award of compensatory damages on default could not exceed amount prayed for in complaint]; Finney v. Gomez (20023) 111 Cal.App.4th 527, 531.) The FAC sought “an amount not less than \$90,000.00” from Defendants Haghighat and Anahita Construction, Inc. (RFJN ¶ 2 and Exhibit A ¶ 45) But, on November 14, 2025, the Court awarded Plaintiffs damages in the amount of \$263,372.49. (RJFN ¶ 6 and Exhibit E at 2.) Because the amount of damages in the default judgment exceeds the amount prayed for in the FAC, the judgment is void as the Court had no jurisdiction to render it as a matter of law. Given this, the Court need not reach the arguments concerning service.